

Court No. - 21

Case :- WRIT - C No. - 38700 of 2022

Petitioner :- Smt.Namrata Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Santosh Kumar

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

Sri Narendra Kumar Tiwari, learned counsel for the respondent no. 3-Electricity Department submits that final assessment was made in the instant case and the recovery is based on the same. However, he is unable to place on record the final assessment order except a bill which mentions that it is being issued as theft was discovered during checking. The bill cannot be a substitute to a final assessment order envisaged under Clause 8 of the Electricity Supply Code, 2005.

Respondent no. 3 shall communicate the instant order to the Managing Director, Purvanchal Vidyut Vitaran Nigam Limited and both of them will file their personal affidavits and explain how the procedure adopted is in accordance with that provided under the Electricity Supply Code, 2005.

Sri Narendra Kumar Tiwari, learned counsel for the respondent no. 3-Electricity Department undertakes to communicate the instant order to the third respondent for compliance.

Put up as fresh on 18.1.2023.

Order Date :- 11.1.2023

VMA

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Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

Put up tomorrow i.e. on 19.01.2023.

Order Date :- 18.1.2023

Sumit Kumar

(Vikram D. Chauhan,J.) (Manoj Kumar Gupta,J.)

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The instant petition has been filed challenging the recovery notice dated 14.03.2022 issued by respondent no.3 for recovery of electricity dues in a case of alleged theft of electricity.

On 11.01.2023, the following order was passed:-

"Sri Narendra Kumar Tiwari, learned counsel for the respondent no. 3-Electricity Department submits that final assessment was made in the instant case and the recovery is based on the same. However, he is unable to place on record the final assessment order except a bill which mentions that it is being issued as theft was discovered during checking. The bill cannot be a substitute to a final assessment order envisaged under Clause 8 of the Electricity Supply Code, 2005.

Respondent no. 3 shall communicate the instant order to the Managing Director, Purvanchal Vidyut Vitaran Nigam Limited and both of them will file their personal affidavits and explain how the procedure adopted is in accordance with that provided under the Electricity Supply Code, 2005.

Sri Narendra Kumar Tiwari, learned counsel for the respondent no. 3-Electricity Department undertakes to communicate the instant order to the third respondent for compliance.

Put up as fresh on 18.1.2023."

In compliance of the above order, personal affidavit of the Managing Director, P.V.V.N.L. has been filed and in which it is admitted that proper procedure was not followed in issuing the recovery notice.

Learned counsel for the respondent Corporation Sri N.K. Tiwari has placed on record a communication sent by Executive Engineer to A.D.M., Finance, Prayagraj for withdrawal of the recovery certificate. Sri N.K. Tiwari states that the recovery certificate has been withdrawn and fresh proceedings will be initiated strictly in accordance with law.

Having regard to the aforesaid stand of the respondent Corporation, the writ petition is disposed of in terms thereof.

(Vikram D. Chauhan, J.) (Manoj Kumar Gupta, J.)

Order Date :- 19.1.2023

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